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Case Name: *Bijan Haghighi v. City of Mountain View, et al.*

Case No.: 23CV415280

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

Plaintiff Bijan Haghighi (“Plaintiff”) moves for leave to file a Supplemental Complaint under Code of Civil Procedure Section 464(a) on the grounds that new facts and occurrences relevant to the existing causes of action have arisen after the filing of the operative Third Amended Complaint (“TAC”). Notice of Motion (the “Motion”) at 1:23-27 (filed: Oct. 27, 2025).

The Motion came on for hearing on June 24, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

For this Motion, dates matter.

On May 3, 2023, Plaintiff commenced this action by filing a Complaint bringing claims for civil rights, tort, and contract violations against defendants MVLA Union High School District (“MVLA”) and Achilles Walker (“Walker”) (collectively, “Defendants”), among others.

On June 26, 2023, Plaintiff filed his First Amended Complaint (“FAC”).

On September 1, 2023, Plaintiff filed his Second Amended Complaint (“SAC”).

And on January 26, 2024—a key date on which resolution of this Motion hinges—Plaintiff filed his TAC.

On October 27, 2025, Plaintiff filed this Motion to file Supplemental Complaint under Section 464(a) to allege new facts and occurrences relevant to the existing causes of action have arisen after the filing of the operative TAC. Motion at 1:23-27.

Defendants oppose the Motion.

For the reasons set forth below, the Motion under Section 464(a) is DENIED.

I. Legal Standard under Section 464(a)

The plain text of Code of Civil Procedure Section 464(a) provides: “The plaintiff and defendant, respectively, may be allowed, on motion, to make a supplemental complaint or answer alleging facts material to the case *occurring after* the former complaint or answer.” C.C.P. § 464(a) (emphasis added). Likewise, the Rutter Group Guide to Civil Procedure Before Trial makes clear that the “function” of a supplemental pleading under Section 464(a) is “to allege relevant facts *occurring after*” the operative pleading was filed. California Practice Guide: Civil Procedure Before Trial at 6:791(a) (The Rutter Group, 2025 Ed.) (emphasis in original) (citing C.C.P. § 464(a) and *Foster v. Sexton* (2021) 61 Cal. App. 5th 998, 1032).

II. Analysis of the Motion under Section 464(a)

This Motion for leave to file a Supplemental Complaint under Section 464(a) fails for two reasons: (1) the vast majority of new allegations that Plaintiff wishes to add *occurred before* the operative TAC was filed on January 24, 2024; (2) even if the Court were to reconceptualize this Motion as a motion to file a Fourth Amended Complaint as opposed to a motion for leave to file a Supplemental Complaint under Section 464(a), the Motion still fails because it badly fails to comply with multiple requirements of CRC 3.1324 for motions to file amended pleadings.

a. The Motion is Denied because the vast majority of the allegations that Plaintiff wants to add occurred *before* the operative TAC was filed.

Plaintiff’s Motion under Section 464(a) is denied because the Motion violates the plain text Section 464(a). Whereas Section 464(a) allows a party to file a Supplemental Pleading alleging relevant facts “*occurring after*” the operative TAC, C.C.P. § 464(a) (emphasis added), here 11 out of the 14 new alleged violations that Plaintiff wants to put in its proposed Supplemental Complaint “occurred between October 4, 2021, and August 5, 2023, all *before* Plaintiff filed the TAC on January 26, 2024.” Opp. at 5:11-13 (emphasis added). Before and after are opposites, they conflict. So as what Plaintiff seeks to do here conflicts with the plain text of Section 464(a), Plaintiff’s Motion under Section 464(a) must be DENIED.

b. Even if the Court were to treat this as a Motion to *amend* to file a Fourth Amended Complaint, such a Motion still fails because Plaintiff fails to satisfy the requirements for a motion to amend under California Rule of Court 3.1324.

Given that this Motion to file a Supplemental Complaint is plainly improper under Section 464(a) because the vast majority of new allegations occurred before the TAC was filed, the Court still has discretion to treat this Motion as one to file an *amended* pleading, which here would be the *Fourth* Amended Complaint, because it deals with allegations before the TAC was filed. California Practice Guide: Civil Procedure Before Trial at 6:791(a)(1)(b) (a pleading titled “supplemental complaint” may be treated as an amended

complaint where it deals with matters occurring before filing the operative complaint).

Even so, a motion to file an amended pleading must comply with the requirements of California Rule of Court (“CRC”) 3.1324, which requires, in relevant part, Plaintiff to include with the motion: a copy of the proposed amendment, serially numbered to differentiate from previous pleadings or amendments; including proposed allegations, where, by page, paragraph, and line number those allegations will be located; and a declaration that specifies the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reason why the request for amendment was not made earlier. CRC 3.1324(a) & (b).

But Plaintiff’s Motion violates all those requirements because it:

- Fails to include a copy of the proposed amendment;
- Fails to state what allegations are proposed to be amended;
- Fails to explain the effect of the amendment;
- Fails to explain why the amendment is necessary and proper;
- Fails to explain why the facts giving rise to the amended allegations were discovered, and
- Fails to explain why the request for amendment was not made earlier.

Opp. at 5:3-7.

Accordingly, even if the Court were inclined to treat this Motion as one to file a Fourth Amended Complaint, the Court DENIES the Motion to amend for multiple violations of CRC 3.1324.

Moreover, in light of Plaintiff’s multiple violations of CRC 3.1324 here and the fact that he has already been allowed to file a *Third* Amended Complaint in this case, Plaintiff cannot be heard to argue that this Court is being unfair to him let alone causing him undue prejudice by not allowing him to file a *Fourth* Amended Complaint now.

III. Conclusion and Order

For all the reasons set forth above, Plaintiff’s Motion under Code of Civil Procedure Section 464(a) to file a Supplemental Complaint is **DENIED without prejudice**.

The Court notes that Plaintiff may still *during* the trial, which will begin on December 14, 2026, seek leave from the trial judge to amend his pleading to conform to proof under Code of Civil Procedure Sections 473(a)(1) and 576. Of course, the Court now takes no position whatever on whether the trial judge should grant or deny such a motion if one were to be brought, but simply points out that today’s Order does not bar Plaintiff from bringing such a motion during trial if Plaintiff wishes to do so then.

SO ORDERED.

Date: June 24, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 2

Case Name: *Peter Xu Zhong v. Pohing Chan, et al.*

Case No.: 23CV424913

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Pohing Chan (“Chan” or “Defendant”) moves for Summary Judgment or, in the alternative, Summary Adjudication in favor of Chan and against Plaintiff Peter Xu Zhong (“Zhong” or “Plaintiff”) under Code of Civil Procedure Section 437c on the grounds that there is no triable issue of material fact as to any causes of action, which are without merit as a matter of law, and Chan is entitled to judgment as a matter of law on Zhong’s Complaint in this independent action in equity to set aside and vacate the default judgment entered in *Chan v. Zhong*, Santa Clara County Superior Court Case No. 20CV369927. Notice of Motion (the “Motion”) at 1:22-2:8 (filed: Nov. 24, 2025). The Motion is based on the following grounds:

1. The default judgment in Case No. 20CV369927 is valid and not void for lack of personal jurisdiction.
2. Zhong cannot meet his burden to rebut the presumption of proper service created by the registered process server’s Proof of Service.
3. Zhong cannot introduce or establish extrinsic fraud or any other equitable basis to set aside the default judgment.
4. Zhong’s claims are barred by laches and other applicable defenses.
5. Zhong’s lacks admissible evidence to support one or more essential elements of his claims.

Id. at 2:9-18.

The Motion came on for hearing on June 24, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

Zhong commenced this Case No. 23CV424913 on December 1, 2023 by filing the Complaint against Chan. Next, on December 1, 2023, Zhong filed a first amended complaint (“FAC”) asserting a single claim for Independent Action to Vacate and Set Aside Default Judgment in Case 23CV424913.

According to the FAC, Zhong was a defendant in a separate case—Case No.